



870 Fifth Avenue Corporation
870 Fifth Avenue
New York, NY 10065

Insurance Requirements

- Commercial General Liability Coverage not less than \$1 Million for bodily damage and property damage per occurrence and \$3 Million general aggregate per project
- Workers Compensation not less than \$100,000 per employee, \$100,000 per accident and \$500,000 policy limit
- Disability insurance as required by NYS law
- Automobile Liability Coverage (where applicable) not less than \$1 Million
- Umbrella Liability Insurance with a limit of \$5 Million per occurrence and a general aggregate of \$5 Million

Certificate Holder: 870 Fifth Avenue Corporation
c/o Douglas Elliman Property Management
909 Third Avenue, 11th Floor
New York, NY 10022

Additional Insureds:

- Douglas Elliman Property Management, as Agents
909 Third Avenue, New York, NY 10022
- 870 Fifth Avenue Coporation
870 Fifth Avenue, New York, NY 10065
- Mr. and Mrs. Tenant Shareholder(s) of their apartment

No work can begin until or unless the proper certificates of insurance and hold harmless agreement are received. A certificate of insurance evidencing the coverage and named additional insureds must be emailed in advance to: 1. Nick Mirzo nmirzo870@gmail.com and 2. Natalie Beskrownj Natalie.Beskrownj@ellimanpm.com

CONTRACTOR'S INDEMNIFICATION & INSURANCE AGREEMENT

Whereas _____ ("Contractor") is and will be performing certain work for _____ ("Shareholder") at _____ ("Corporation") located at _____ pursuant to oral and/or written agreements and/or Purchase Orders. As to all such work, Corporation, Shareholder and Contractor agree as follows:

INDEMNIFICATION AGREEMENT

To the fullest extent permitted by law, Contractor agrees to indemnify, defend and hold harmless, Corporation, managing agent, architect and Shareholder from any and all claims, suits, damages, liabilities, professional fees, including attorneys' fees, costs, court costs, expenses and disbursements related to death, personal injuries or property damage (including loss of use thereof) arising out of or in connection with the performance of the work of the Contractor, its agents, servants, subcontractors or employees, or the use by Contractor, its agents, servants, subcontractors or employees, of facilities owned by Corporation. This agreement to indemnify specifically contemplates full indemnity in the event of liability imposed against the Corporation, managing agent, architect and Shareholder without negligence and solely by reason of statute, operation of law or otherwise, and partial indemnity in the event of any actual negligence on the part of Corporation, managing agent, architect and Shareholder either causing or contributing to the underlying claim. In that event, indemnification will be limited to any liability imposed over and above that percentage attributable to actual fault, whether by statute, by operation of law or otherwise. If Contractor fails to procure insurance as required, recoverable damages shall not be limited to the cost of premiums for such additional insurance, but shall include all sums expended, and damages incurred by Corporation, managing agent, architect and Shareholder, and their respective insurers, which would have otherwise been paid by the Contractor's required insurance.

INSURANCE PROCUREMENT

Contractor shall obtain and maintain at all times while performing work for or at the request of the Shareholder, at its sole cost and expense, the following insurance (a) workers compensation insurance with statutory limits and employer's liability coverage of not less than \$500,000; (b) commercial general liability insurance with a minimum limit of \$1,000,000 per occurrence and \$2,000,000 in the aggregate, which insurance shall cover the following: premises and operations liability, products/completed operations, broad form property damage, broad form contractual liability, personal injury and independent contractor's liability; (c) automobile liability insurance covering owned, hired and non-owned vehicles, with a minimum limit of liability of \$1,000,000; and (d) umbrella liability insurance with a limit of \$5,000,000 per occurrence and a general aggregate of \$5,000,000. Contractor shall, by specific endorsements to its primary and umbrella/excess liability policy, cause Corporation, managing agent, architect, and Shareholder to be named as additional insureds. Contractor shall, by specific endorsement to its primary liability policy, cause the coverage afforded to the additional insureds thereunder to be primary to and not concurrent with other valid and collectible insurance available to the additional insureds. Contractor shall, by specific endorsement to its umbrella/excess liability policy, cause the coverage afforded to the additional insureds hereunder to be first tier umbrella/excess coverage above the primary coverage afforded to the additional insureds and not concurrent with or excess to other valid and collectible insurance available to the additional insureds.

If the terms of this Agreement directly conflict with any other written agreements and/or Purchase Orders between the parties, the term contained in this Agreement shall supersede in that instance.

Contractor	Corporation	Shareholder
Signature:	Signature:	Signature:
_____	_____	_____
Name:	Name:	Name:
_____	_____	_____
Date:	Date:	Date:
_____	_____	_____